



STONE GROUP

L A W Y E R S

Southport Central Commercial
Tower 3, Suite 31106, Level 11,
9 Lawson Street, Southport, QLD 4215

Our Ref: BH:FG:147637

26 November 2024

Mr Cory Shepherd
104/158 Scarborough Street
Southport QLD 4215

By Email: coryshepherd1@hotmail.com

Dear Cory,

Costs Agreement – Corey's Appeal against the Review of his Workcover claim and his application for reinstatement

Client details	
Name	Mr Cory Shepherd
Address	Cory Lea Shepherd 104/158 Scarborough Street Southport QLD 4215
Telephone	Core Shepherd: 0422 438 627
Email	coryshepherd1@hotmail.com

Thank you for your instructions to act on Corey's behalf in the above matter.

The terms of this letter constitute a Costs Agreement pursuant to the *Legal Profession Act 2007* (Qld), and includes our:

- Schedule A - Form 1 Disclosure of Costs;
- Schedule B - Schedule of Fees, Charges and Expenses;
- Schedule C – Schedule of Litigation Scope of Fees;
- Schedule D - Standard Terms of Service;
- Schedule E - Client Acceptance Form.

Description of matter

You have instructed our firm to act for you in relation to your appeal of the review of Workcover's refusal for worker's compensation (**the Appeal**) and your application for reinstatement to your position as Administration Officer at Metro South Hospital and Health Service, undertaking his duties at Logan Hospital (**the**

Reinstatement Application).

Scope of Work

Should you wish to proceed, we will perform the following tasks in order to bring this matter to conclusion:

STAGE OF MATTER	TASKS
Stage 1	a) Initial review of documents provided by you (including correspondence, contracts and other documents) relating to the Reinstatement Application. b) Providing you with an initial view of your prospects in the Reinstatement Application. c) Liaising with you generally for the purpose of obtaining instructions and providing updates. d) Applying to the QIRC to represent you at the reinstatement application. e) Preparing for and appearing at the hearing of your reinstatement application on Friday 29 November 2022.
Stage 2	f) Applying to the QIRC to represent you in the Appeal g) Applying to the QIRC for condonation for the late filing of the appeal. h) Providing you with an initial view of your prospects in the Appeal. i) Preparing for and appearing at the Appeal j) Prepare for and appear for you at the hearing of his appeal at the QIRC hearing.
Further Steps	k) As required and instructed – which may includes stages set out in Schedule C.

In addition to the stages above, we may from time to time perform:

- general services – such as the provision of legal services as requested from time to time to generally represent your interests throughout the duration of this Costs Agreement; and
- administrative work including filing, photocopying and file attendance. Unless specially instructed by you and agreed to by us in writing, we will not do any of the following:
 - (a) provide advice to you in respect of financial documents;
 - (b) provide advice to you with respect to the taxation consequences of any transactions;
 - (c) provide advice to you with respect to any asset protection or structuring issues; or
 - (d) provide advice to you in respect of any employment issues.

Our retainer does not include considering or providing town planning, taxation, financial, accounting or structuring advice. If you do require our advice or assistance in relation to any of these matters, there will be an additional fee payable which we will discuss with you at the time.

We will not be providing any advice in relation to any foreign law. If such advice is necessary, we shall engage lawyers in the relevant jurisdiction to provide that advice.

Persons responsible

Pursuant to the *Legal Profession Act 2007* (Qld), all legal services to be provided for your matter will be provided by an Australian Legal Practitioner. Administrative staff may perform non-legal services incidental to your matter.

The people who will primarily provide you with legal services are:

Name	Position
Nick Stone	Managing Partner
Berren Hamilton	Accredited Specialist Partner
Zacharias Joubert	Special Counsel
Felicity Grice	Paralegal
Kristin Hallam	Paralegal

Notwithstanding the named people above, depending on the scope and urgency of the Work, other solicitors or staff members may assist in performing the Work. The charge out rates of our solicitors and other staff are specified in Schedule B of this Costs Agreement.

Calculation of fees

We calculate and charge our professional fees based on the time spent by our professional staff according to their hourly fees. Our current hourly fees are set out in **Schedule B**.

Based on the information available to the Firm on the date of this letter, we estimate our professional fees in this matter to be within the range set out below:

LEGAL SERVICE	ESTIMATED COST (plus GST and disbursements)
Stage 1	\$8,000 to \$12,000
Stage 2	\$6,000 to \$10,000
Further Steps	See Schedule C .
DISBURSEMENT	ESTIMATED COST (plus GST)
Outlined in Schedule B	\$6,000 for a barrister to appear in your application for reinstatement. \$6,000 for a barrister to appear in your appeal of the review.

We have prepared a schedule of estimated fees for the works usually required to be undertaken in litigious matters - **Schedule C**. You may not require all of the stages to be undertaken, however we provide these estimates so that you are aware of the costs you might incur in this matter.

We propose to undertake works in stages and set out below the initial stages you have engaged this firm to undertake for you. Moving forward, this firm will rely on the estimates of fees set out on **Schedule C** as the basis upon which this firm has disclosed to you the estimated fees of each stage. In the event that the estimates in **Schedule C** are inaccurate (due to matters that subsequently become known to us), we will provide you with an updated estimate.

Notwithstanding the above, our final professional fees may differ from our estimate depending on a range of circumstances (examples of such are outlined below), including without limitation, the fullness and accuracy of your initial instructions, issues raised by the other party or parties, the scope of your instructions changing and any unforeseen circumstances which change the scope of work to be undertaken.

Example of the factors that may cause our estimate to change are:

- (a) the stage at which your matter is resolved (i.e. has it been resolved through settlement negotiations or does it run to trial);
- (b) the tactics adopted by you and/or your opponent(s);
- (c) the timeliness and quality of the instructions you give to this firm;
- (d) the complexity of your matter, which may not be readily apparent at the time of taking initial instructions;
- (e) that it becomes necessary to involve more senior/experienced staff members;
- (f) expert witness' fees may be higher because it is necessary to brief more experts or consider more arguments, and the fees associated with liaising with those experts;
- (g) Barrister's fees may be higher than initially thought, and additional works required as instructing solicitors;
- (h) the number of parties involved in a matter may be increased or decreased;
- (i) the extent in which it is necessary for this firm to gather evidence on your behalf;
- (j) other factors beyond our control.

In addition to our professional fees, you may incur disbursements such as court filing fees, Barrister's fees, agent's fees etc. We estimate that the disbursements you will incur in this matter range from \$250.00 - \$500.00. This estimate of disbursements does not include sundries or Barrister's fees (if applicable).

In addition to the fees set out in **Schedule C**, we will likely also need to undertake the following work for you that is in addition to the particulars of the works set out in each stage:

1. Litigation and advocacy work

The provision of legal services as requested from time to time to represent your interests throughout the duration of this Costs Agreement in any dispute, investigation of a cause of action, court action, alternative dispute process, mediation, tribunal hearing and/or prosecution, including all interlocutory steps, associated alternative dispute resolution processes, hearing or trial, post-trial steps, appeal and execution.

2. Advice work

The provision of advices and associated legal services as requested from time to time throughout the duration of this Costs Agreement in relation to the law, your rights and obligations under the law, risk and other associated issues with your matter.

3. Communications

- (a) With you (both orally and in writing) to keep you updated with the progress of the matter, to discuss with you any issues that arise, discuss strategy and/or offers or settlement and to take your further instructions to proceed.
- (b) With the other side, parties' legal representatives, relevant stakeholders and the Court/Tribunal.
- (c) Liaise with the litigation department head and/or partner as he/she will be overseeing the progress of the matter.

4. General administrative work including filing and attendance from time to time.

We cannot estimate the professional fees that will be charged for this work at this stage but advise you that the fees will be charged at the hourly rates set out in **Schedule B**.

Our scope of work excludes tax advice, structuring advice and advice on other non-legal topics such as financial and accounting issues.

Due to the ongoing nature of the work provided, it is not possible to provide an accurate estimate of our total fees. Our final professional fees may differ from our estimate depending on a range of circumstances, including without limitation, the fullness and accuracy of your initial instructions, issues raised by the other party or parties, the scope of your instructions changing and any unforeseen circumstances which change the scope of work to be undertaken.

We will endeavour to keep you informed if the range of estimated professional fees set out above changes for any reason by providing you with a Further Disclosure Notice.

Retainer

To allow us to commence work on your matter, we kindly request that you deposit **\$10,000** (being part-payment of our anticipated professional fees) into our Firm's trust account:

Account Name:	Stone Group Lawyers Law Practice Trust Account
BSB:	034 215
Account Number:	596 716
Swift Code:	WPACAU2S
Your Reference:	"147637"

Cyber Alert

Please find enclosed a copy of our Cyber Alert. As you may be aware, hackers have been targeting lawyers and parties involved in legal matters, and people across Australia have lost money.

We hereby warn you that you must not act on any **Communication** that requires a party to **Transfer Funds** without first making contact by telephone with the apparent sender of that **Communication** on a **Verified Number** to **Conduct Read Out Read Back**.

For the purpose of this letter and Costs Agreement:

1. **Communication** means any electronic communication, including email, fax social media, text, instant message, application, file sharing and any documents, including but not limited to PDF or Word documents;
2. **Conduct Read Out Read Back** means to verify the authenticity of the Communication by reading out and reading back the account and BSB numbers (or other specific payment details where applicable, E.g. if not a bank account) contained in the Communications and confirming any instructions, all of which must be evidenced in a file note.
3. **Cyber Alert** means the Cyber Alert enclosed with this letter.
4. **Transfer Funds** means to send, deposit, pay, or transfer funds exceeding \$10,000 (Australian dollars), or its equivalent in any other currency.
5. **Verified Number** means a telephone number verified from a source other than a Communication.

Acceptance

Please read through this letter and its attachments carefully and ensure you understand your rights and obligations. If you have any queries, please do not hesitate to contact any of the lawyers working on your matter.

If you accept our offer to enter into a Costs Agreement with you, please sign and return the Client Acceptance Form (by email is fine) together with payment of the abovementioned amount into our trust account.

Your acceptance of our Costs Agreement can also be construed from your conduct, if you tell us that you accept our offer to enter into a Costs Agreement with you (whether orally or in writing), or if you give us instructions in relation to the matter after this letter has been sent to you.

Please note that we are prohibited by law from commencing work on your matter until you have accepted our Costs Agreement. Failure to accept our Costs Agreement within seven (7) days of the date of this letter may result in the immediate withdrawal of the Firm's offer to act.

If you have any queries, please contact our office on (07) 5635 0180.

Yours faithfully

STONE GROUP LAWYERS PTY LTD



Costs Agreement – 26 November 2024
Shepherd – 147637

Nick Stone
Legal Practitioner Director

FORM 1
Legal Profession Act 2007 (s 308(5))

FORM OF DISCLOSURE OF COSTS TO CLIENTS

Legal costs — your right to know

You have the right to:

- negotiate a costs agreement with us;
- receive a bill of costs from us;
- request an itemised bill of costs after you receive a lump sum bill from us;
- request written reports about the progress of your matter and the costs incurred in your matter;
- apply for costs to be assessed within twelve (12) months if you are unhappy with our costs;
- apply for the Costs Agreement (or agreement as to costs including fee proposal) to be set aside;
- accept or reject any offer we make for an interstate costs law to apply to your matter;
- notify us that you require an interstate costs law to apply to your matter.

For more information about your rights, please read the fact sheet titled *Legal Costs — your right to know*. You can ask us for a copy, or obtain it from the Queensland Law Society (or download it from their website www.qls.com.au).

SCHEDULE B

FEES, CHARGES AND EXPENSES

Professional Fees

Practitioner	Hourly Rate (plus GST)
Managing Partner	\$750.00
Partner (Accredited Specialist)	\$695.00
Partner	\$675.00
Special Counsel (Accredited Specialist)	\$650.00
Special Counsel	\$575.00
Senior Associate	\$525.00
Associate	\$475.00
Lawyer (Level 3)	\$425.00
Lawyer (Level 2)	\$400.00
Lawyer (Level 1)	\$350.00
Paralegal	\$300.00
Law Clerk	\$300.00
Administration Assistant	\$175.00

Time will be charged in six (6) minute intervals – with six (6) minutes being the minimum interval recorded for professional services. For example, the time charged for an attendance of up to six (6) minutes will be one (1) unit and the time charged for an attendance between six (6) and twelve (12) minutes will be two (2) units.

Expenses

You are liable for expenses incurred on your behalf including, but are not limited to, the following:

- administration and file opening fee;
- search and enquiry fees;
- court filing fees and transcript charges;
- lodgement fees;
- transaction specific banking charges;
- process servers, investigators
- witness' fees and expenses
- postage courier and messengers; and
- other law practice fees (including barrister's fees).

The Firm will inform you of these expenses and disbursements as well as any other payments required to be made, as soon as is reasonably practicable. You must also pay us any other expenses that we incur in acting on your behalf, including amounts charged by third parties for goods or services supplied in the course of the matter. Such expenses may include barrister's and expert's fees, travel, parking, accommodation, advertising, postage, banking, special document production, stationery, stamp duty, court filing fees and registration fees. These expenses will be charged to you at cost.

You acknowledge that, unless you provide us with specific instructions to the contrary, it is our usual practice

to conduct at your cost property title searches on all relevant real estate, company searches, intellectual property searches, or any other searches relevant to the matter.

GST

All rates, charges and expenses provided are GST exclusive. Where the service we provide to you is subject to GST, we will charge you GST at the applicable rate.

SCHEDULE C

LITIGATION SCOPE OF FEES

SCOPE OF WORKS (Stages)	ESTIMATE OF FEES (excluding GST)
1) Consultation a) Discuss your matter generally b) Present options to resolve dispute c) Discuss litigation process generally and advise on estimated fees	\$400.00 - \$750.00
2) Review of evidence a) Liaising with you (via email, telephone and post) to obtain documents relating to the dispute b) On-going communications with you (via email, telephone and post) regarding the material required to evidence the issues in dispute c) Undertaking searches such as property, company, bankruptcy etc. (not including the charges for these searches)	\$800.00 - \$2,500.00
3) Written advice Drafting written advice to you regarding the matter, which may include: a) a summary of the facts b) explanation of the law c) assessment of the quality of evidence to support the case d) advice as to the prospects of succeeding if a claim was made e) dispute resolution options f) litigation process g) cost recovery	\$1,000.00 - \$3,500.00 (subject to the complexity of the matter)
4) Pre-litigation steps Drafting or responding to: a) letter of demand (for debt disputes) b) Concerns Notice (for defamation claims) c) Show Lease Notice or Notice to Remedy Breach or Notice of Intention to Terminate Contract (or similar notice)	\$1,000.00 - \$3,000.00 (each) (subject to the complexity of the matter)
5) Communicating with the other side a) Delivery of letter of demand by email or post b) Negotiations to resolve dispute c) Proposals for alternative dispute resolution (e.g. mediation) d) Requests for further evidence	\$600.00 - \$1,800.00
6) Witness statements a) Meeting with you and all other relevant witness to take witness	\$1,500.00 - \$4,500.00 (per statement)

a) Undertaking searches if necessary (such as company searches) to determine address for services b) Filing of court documents c) Engagement of process server to effect service d) Drafting of, or obtaining, affidavit of service e) Filing affidavit of service (Not including court filing fees and process server costs. These fees will need to be paid into our trust account before we can action this stage.)	
12) Default judgment (if applicable) In the event the defendant does not file its defence within 28 days after the date of service, you can apply for default judgment. a) Drafting of advice to you regarding your right to apply for default judgment b) Taking instructions from you to draft default judgement application c) Drafting default judgment application, affidavit and draft order d) Filing of default judgment material e) Delivery to you of default judgment order	\$800.00 - \$1,600.00
13) Review of defence (and counterclaim if relevant) a) Review defence b) Review of counterclaim (if a counterclaim is filed) c) Written advice to you regarding the defence including commentary on issues raised, evidence referred to and matters that need to be addressed d) Written advice to you regarding the counterclaim including commentary on issues raised, evidence referred to and matters that need to be addressed e) Liaising with you to take your instructions on issues raised in defence f) Liaising with you to take your instructions on issues raised in counterclaim In the event the defence is defective, we will provide you with written advices regarding the following: g) Request for further and better particulars h) Strike out application i) Summary judgment	\$2,000.00 - \$6,000.00 (subject to the complexity of the matter) \$800.00 - \$1,500.00 (for each)

This stage includes additional fees for the mediator. The estimate of the mediator fees will be delivered to this firm by the mediator once he or she has been asked to mediate. We will then forward that estimate to you for your review and consideration. You MUST agree to pay that estimate of fees and deposit those fees into our trust account before the mediator will be formally engaged to undertake the work.	
21) Negotiated outcome a) Negotiating terms of settlement b) Drafting written advices to you regarding your rights and obligations in relation to resolving the dispute by negotiation c) Drafting deed of settlement and release d) Drafting, executing and filing of Notice of Discontinuance e) Liaising with you to amend, settle and execute affidavit material	\$1,000.00 - \$2,000.00
22) Trial a) Liaising with you, Counsel (if engaged)/experts, witnesses and other relevant stakeholders prior to setting down for trial b) Preparation and filing of a Request for Trial Date c) Liaising with solicitors for other side and Court Associate in relation to suitable time and dates for trial d) Preparation of a Trial Brief for provision to Counsel in advance of the trial e) Settling with solicitors for other side, the agreed issues, and those issues which are to be argued at the trial f) Attendance at Trial	\$20,000.00 - \$50,000.00

SCHEDULE D

STANDARD TERMS OF SERVICE

1 YOUR INSTRUCTIONS

- 1.1 Our Costs Agreement letter sets out the scope of legal services you have asked us to provide (**Work**). For us to effectively perform these legal services, you must act reasonably and provide us with full, accurate and timely instructions including all relevant documents and information.
- 1.2 You agree to take reasonable care to protect your own interests and to assess the commercial soundness of your matter and the integrity and financial condition of other parties who may be involved in the matter. You will make all reasonable efforts to be available to give us full and accurate instructions in relation to the Work, including making arrangements to enable us to contact you when you anticipate being absent from your residence or business during a time when instructions will need to be given to us, keeping us advised of any changes to your address or contact details, and promptly advising us should any issue come to your attention that may affect the outcome of this matter.
- 1.3 From time to time our advice to you will be based on assumptions and/or qualifications and those assumptions and/or qualifications will be set out in our advice. We will not be liable for any part of our advice that is conditional upon any of those assumptions or in circumstances where further information or events make any part of our advice incorrect.
- 1.4 You acknowledge that we have agreed to undertake the Work and provide the services to you relying upon the truth and accuracy of your instructions and you promise to comply with these Terms. We cannot be held responsible for any result based upon you supplying inaccurate or untruthful instructions.
- 1.5 You must:
- (a) provide the Firm with timely, accurate and proper instructions, including all documents and other records relevant to the provided services;

- (b) act reasonably and take reasonable care to protect your own interests in respect to the matters the subject of this Costs Agreement;
- (c) satisfy yourself as to the commercial viability of transactions (if any); and
- (d) where relevant, conduct due diligence of the other parties to the transaction, checking all financial matters and assessing the commercial soundness of the transactions.

2 OUR PROFESSIONAL FEES

- 2.1 If our covering letter specifies an estimate of professional fees for the Work, we are not bound by this estimate and the estimate may vary depending on a range of circumstances including without limitation, the fullness and accuracy of your initial instructions, issues raised by the other party or parties, the scope of your instructions changing and any unforeseen circumstances which change the scope of work to be undertaken.
- 2.2 If our covering letter specifies a fixed fee for the Work, we will charge that fee for the agreed scope of the Work. We will charge for work that falls outside that scope on an hourly fee basis. We will advise you as soon as reasonably practicable if we are required to do work outside the agreed scope and give you an estimate of the likely amount of the further fees, charges and expenses.
- 2.3 In certain circumstances, we may charge an additional fee by way of a premium to reflect issues that include but are not limited to the nature, complexity, importance, urgency or special responsibility of the matter. We will only charge a premium if you agree.
- 2.4 From time to time we review our hourly professional fees, charges and expenses and we may increase or change them depending on market conditions and other factors. You agree that any such change does not vary these Terms. We will try to advise you if the hourly fees of the staff working on your matter change. If you do not accept the changed hourly fees, you must promptly tell us and you can terminate these Terms if you wish.

2.5 We may charge 'Care and Consideration' which is a charge that is not easily measured having regard to the complexity or urgency of the matter, the difficulty and novelty of any question raised in the matter and the skill, labour, specialised knowledge and reasonability involved in the matter on our part. This includes tasks or parts of the work that are not capable of being time recorded and costed. This includes general supervisory conduct where such oversight is required or where the complexity of the matter requires more time to consider and attend upon the matter than would not normally be billed. You agree that we may charge an amount up to five percent (5%) plus GST of the total cost for our professional fees for care and consideration.

3 OFFICE CHARGES

3.1 In addition to our professional fees and disbursements, we may charge you to cover general office charges, excluding the above in Clause 2, but includes IT support, local costs of phone, postage, petties and general sundries in operating an office, of an amount up to five percent (5%) plus GST of the total Cost for our professional fees charged to you pursuant to Clause 2 above.

4 TRUST ACCOUNT AUTHORITY

4.1 You authorise us to deposit any money held on your behalf, other than cheques to be delivered to a third party, into our trust account.

4.2 By accepting our offer to enter into this Costs Agreement, you are authorising us to apply any moneys held by us in our trust account on your behalf (or on behalf of any of you where there is more than one of you instructing us to act) in our discretion.

4.3 By accepting this Costs Agreement, you irrevocably authorise, confirm and instruct us as follows:

(a) to apply all funds that we may hold, or may hold in the future, in our trust account on your behalf, either jointly or severally with someone else, or on behalf of any entity of which you are a director, trustee, agent or controller (**Related Entity**) in payment of all fees and outlays billed after such account or accounts are sent to the nominated payer or you or your Related Entity at that person or entity's last address, including email address, advised to our office;

(b) to apply all funds held by us for or on behalf of, you or any of your Related Entities to pay your or any other Related Entity's account that may be outstanding at any time in such proportions and at such times as we may decide in our absolute discretion;

(c) you authorise us to withdraw from any money held in trust on your behalf, whether or not we have given the person a bill relating to the money, for the payment of a disbursement or legal cost, where we have given you notice that complies with the Legal Profession Regulation 2017; and

(d) that all funds that you or a Related Entity have paid or will in the future pay to us or cause to be paid to us are:

(i) paid to us for the purpose of paying or securing you and your Related Entities' existing and future accounts issued on all matters for you and/or your Related Entities, in any respect, that we may be undertaking regardless of which of you or which Related Entity is involved and which regardless of whether you or that Related Entity which paid the relevant funds;

(ii) not paid, as far as you are aware, in breach of any trust or other obligation that may be owed to any other entity, any potential administrator, liquidator, receiver or controller; and

(iii) paid for the purpose of, and to secure the provision of our legal services to you and/or your Related Entities, such that we are entitled to a lien over such funds for this purpose. To the extent necessary this Costs Agreement evidences the existence of an enforceable lien over all such funds.

4.4 The above authority and direction is given by you in your personal capacity as well as in your capacity as the duly authorised officer of all of your Related Entities.

5 BILLING AND INTEREST

5.1 We will usually issue tax invoices on a monthly basis and on completion of the Work (or the termination of these Terms). We may also send you an invoice when we incur a substantial expense.

- 5.2 Our invoices will include our professional fees, professional charges, and any expenses incurred on your behalf.
- 5.3 Although you may expect to be reimbursed by a third party for our fees, charges and expenses, we do not have any recourse against third parties for our fees, charges and expenses. You must pay us as set out in these Terms even if payment to you by a third party is delayed or not received.
- 5.4 We may ask you from time to time for an advance payment by way of a retainer on account of future costs to be incurred by you. We will advise you of the amount and the date by which payment is required. We may decide not to commence or continue work until the payment is received. If the amount requested is not paid by the required date, we may terminate our services.
- 5.5 You irrevocably authorise us to withdraw and apply money held in that account to pay expenses and to pay the costs (fees, charges and expenses and any accrued interest) stated in an invoice on the day following the date we have sent the invoice. You also irrevocably authorise us to, on the day following the date we have sent the invoice, withdraw and apply such money held in our trust account to pay our costs and any accrued interest incurred in relation to this matter or on any other matter in which you have instructed us to act (or act at your request, for any entity (whether personally, in your capacity as a director of a corporate entity or as trustee of any trust) in accordance with any legislation that allows us to do so. Each invoice is a separate and final bill of costs for the legal services referred to in the invoice.
- 5.6 You expressly agree and consent to the Firm:
- (a) sending you bills and/or invoices and/or Statements of Account and/or other similar like documents by email to the address nominated by you;
 - (b) that the email attaching the bill serves as your written notice pursuant to section 58 of the *Legal Profession Regulations 2007* (Qld) of our Firm's intention to withdraw monies from our trust account for payment of our professional fees; and
 - (c) withdrawing monies from trust on the first (1st) day after the email referred to in Clause 5.6(a) has been sent to your nominated email address.
- 5.7 If bills remain unpaid for thirty (30) days after becoming due for payment, interest may be charged on the unpaid amount at a benchmark rate being the rate prescribed by regulations under the *Legal Profession Act 2007* (Qld) which is the rate that is equal to the Cash Rate Target, as defined by the regulations to that Act plus two percentage points (2%) as at the date of the bill.
- 5.8 In the event that you do not pay the Firm's account:
- (a) this Costs Agreement entitles the exercise of a solicitor's lien. The lien allows us to retain all your documents and funds in trust until the account is paid;
 - (b) we may take steps to recover the debt, which may include appointing a debt collector;
 - (c) You agree that any costs or charges incurred in recovering any amounts unpaid by you, including but not limited to interest and other recovery charges, is payable by you as a liquidated debt;
 - (d) We may take steps to have the failure to pay recorded against your credit file.
- 5.9 You hereby agree that if you default on payment of our bills, we may list information about your default with a credit reporting agency (including disclosing personal information, including information about your liabilities, repayments and defaults) pursuant to the *Privacy Act 1988* (Cth).
- 5.10 If the Firm does not hold money on trust for you for payment of the Firm's professional fees, our bills are payable within seven (7) days of receipt.
- 5.11 For the purpose of this Costs Agreement you will be deemed to have received our bill if it is:
- (a) given to you or to your agent personally – on the day it is given to you;
 - (b) sent to you at the address above or to your agent by post then – within two (2) days of posting; and
 - (c) sent to you at the email address or to your Agent's email address - on the day it is sent to you.
- 5.12 The following avenues are open to you under the terms of the *Legal Profession Act 2007* (Qld) in the event of a dispute in relation to legal costs:

- (a) to apply for a costs assessment within twelve (12) months of delivery of a bill or request for payment or such extended time as may be permitted by the court or costs assessor after considering the reason for the delay (except sophisticated clients as defined in the *Legal Profession Act 2007* (Qld); or
 - (b) to apply to set aside the Costs Agreement within six (6) years or other times as the law permits.
- 5.13 You may contact Mr Nick Stone if you have any queries about our professional fees and billing procedures.
- 5.14 If we provide credit card facilities for payment convenience and you choose to pay us by using a credit card, then you expressly authorise us to charge a disbursement at that time up to a further two percent (2%) on the net remittance of any invoices paid by Visa or Mastercard or American Express if such a surcharge applies.

6 CONFLICTS OF INTEREST

- 6.1 When we receive instructions to act in a new matter, we may have a conflict of interest.
- 6.2 We cannot always identify a conflict before it arises. One reason for this is that our clients often deal through related entities and it is not always apparent to which client group an entity belongs. To minimise the likelihood that a conflict of interest will arise, please let us know the names of your related or associated entities that we should include in our conflict enquiries.
- 6.3 If you ask us to keep your matter confidential, you acknowledge that we may not be able to do a full conflict search. You also agree that we can disclose (on a confidential basis) your name, the name of all other parties involved and the general nature of the matter to our partners and senior management, to help reduce our risks and decide whether a potential for conflict could arise.
- 6.4 So that we protect the confidential information of our other clients, you agree that we need not disclose to you any information that we acquire in the course of us acting for those other clients (including information contained in conflict searches conducted on behalf of any existing or prospective clients). Only the professional staff working on your matter are obliged to give advice and disclose information to you.

7 ENGAGEMENT OF BARRISTER OR EXPERT

- 7.1 If we consider that a barrister or expert should be engaged, we will discuss that engagement with you and obtain your instructions.
- 7.2 We may ask you to approve a costs agreement between us and a barrister or expert, in which case we will charge you what they charge us. Alternatively, we may ask you to enter into an agreement with a barrister or expert, in which case you will be liable to pay their costs directly to them.
- 7.3 If you are successful in any litigation, you may recover from another party some of your costs. The costs to be recovered will almost always be less (and sometimes substantially less) than those that will be payable by you to us. We estimate the costs recoverable by you may be no greater than seventy-five percent (75%) of the total costs payable by you to us.
- 7.4 If you are unsuccessful in any litigation, you may be required to pay another party's costs. We estimate the costs you may have to pay to another party may be up to seventy-five percent (75%) of the other party's costs.
- 7.5 Any court order does not affect your obligation to pay our costs or those of barristers or experts engaged on your behalf, regardless of the outcome of the proceedings.
- 7.6 You acknowledge that our costs may exceed the scale of court fees set by the relevant court and that such fees may not be fully recoverable from other parties.

8 TERMINATION

- 8.1 You may terminate this Costs Agreement at any time by notifying the Firm in writing.
- 8.2 Should this Costs Agreement be terminated at any time, you remain liable for the legal costs up until termination.
- 8.3 If you do not pay monies in accordance with the Costs Agreement, the Firm may suspend work and may cease acting for you.
- 8.4 The Firm will not continue to do the work and may terminate the Costs Agreement if:

- (a) you fail to pay our bills or deposit monies to our trust account as required from time to time;
- (b) you fail to accept our Costs Agreement or Further Disclosure Notice;
- (c) you fail to provide us with adequate instructions within a reasonable time;
- (d) you give instructions that are illegal, deliberately false or intentionally misleading;
- (e) you fail to accept an offer of settlement which we think is reasonable;
- (f) you fail to accept advice we (or counsel) give you;
- (g) you engage another law practice to advise you on this matter without our consent;
- (h) we, on reasonable grounds, believe that we may have a conflict of interest;
- (i) you ask us to act unethically; or
- (j) for other just cause.

8.5 If the Costs Agreement is terminated either by you or the Firm, you will be required to pay the Firm's professional fees, fees for other items and expenses and disbursements up to the date of termination.

8.6 The Firm will give you notice of our intention to terminate our Costs Agreement, and of the grounds on which the notice is based.

8.7 On termination, the Firm is entitled to retain possession of your documents and trust money while there is money owing to us for our professional fees, fees for other items and expenses and disbursements, unless and until security is provided for our costs. This right survives your bankruptcy or liquidation, subject to any applicable legislation.

9 TERMINATION OF FIXED FEE OR STAGED AGREEMENT

9.1 If the matter involves fixed fee payments, you must pay the part of the Firm's fixed fee that the Firm reasonably estimates has been incurred in respect of the legal services provided to you up to the date of termination, plus fees for other items, expenses and disbursements, subject to your right to a costs

assessment. You will be liable to pay the Firm's fees and expenses whether or not another party has to subsequently pay you for costs incurred.

9.2 Should you terminate this Costs Agreement you will be liable to pay for legal services performed up to the time the termination is conveyed to the Firm in writing.

10 YOUR DOCUMENTS

10.1 The law says that not all documents on our file will be your client documents, including some file notes, working papers, accounts or internal emails, which will belong to us.

10.2 We may during your matter, retain any documents relating to your matter in electronic form only, and will, on completion of the Work, retain any documents relating to your matter in electronic form, but will destroy all hardcopy files in our possession (except for those documents deposited in safe custody).

10.3 At the conclusion of the Work which we perform for you, or where our engagement is terminated, you may request your client documents from us at no charge. If you do make such a request, they will be provided to you within a reasonable timeframe. This will end our obligation to keep your client documents.

10.4 You agree that we may also retain copies of your client documents, for our own regulatory, insurance and other reasonable internal purposes.

10.5 Where your client documents are held by us in electronic form, only electronic copies of them will be provided to you. Those copies will be provided in a reasonable electronic format, usually the same format in which we hold them.

10.6 No software or equipment will be provided to you to enable you to view or access your electronic client documents. Electronic documents may be provided to you solely in a 'read only' format, unless it was part of our engagement that they be provided in a form which permits editing or modification by you. While we take reasonable measures against malware, viruses or other harmful code, to the extent the law permits, no warranty is given that the electronic documents will be free from these. We recommend that you use a reputable security program at all times.

10.7 We may choose to make your electronic documents available to you for a limited time via a file sharing platform so that you can download them, if we consider this to be reasonable. While this would be at no charge to you, please be aware that you may incur data charges associated with the download for which we will not be liable. We accept no liability for any loss you may suffer as a result of your use of that service.

10.8 We will retain your electronic file for no more than seven (7) years after the date of the final bill rendered by us in this matter. After this time, we may destroy them without contacting you again.

10.9 You expressly agree to the Firm dealing with your file as detailed in this Clause 10 above.

11 PRIVACY PROTECTION

11.1 In the course of the Work, we may collect personal information about you and your representatives and employees. This personal information will only be disclosed and used for the purposes of carrying out the Work or otherwise in accordance with your instructions.

11.2 Personal information about you, provided by you and other sources, is protected under the *Privacy Amendment (Private Sector) Act 2000* (Cth). Disclosure of such information may be compelled by law (e.g. under the *Social Security Act 1991* (Cth)).

11.3 You also authorise us to disclose such information where necessary to others in furtherance of your claim/matter including without limitation, to the Court, the other party or parties to litigation, to valuers, experts, and barristers.

11.4 Except where we have otherwise agreed or you otherwise direct us, we can also disclose the fact that we act or have acted for you in any of your matters and the general nature of the matter in our tender and marketing documents.

11.5 Unless you instruct us otherwise, you consent to our use of your contact details to maintain an ongoing professional relationship with you and to provide legal updates and invitations to seminars and other client events that we think may be of interest to you.

11.6 You may have rights under the *Privacy Act 1988* (Cth) to obtain access to the personal information

we have about you. You may ask us not to send direct marketing materials to you by contacting us.

12 LIABILITY

12.1 If you engage us on behalf of a third party or together with another party, these Terms bind both you and the other party separately and together.

12.2 If you suffer loss or damage as a result of acts or omissions by us for which we are liable (whether in negligence, contract or otherwise) then, to the extent permitted by law, we will not be liable for any damage or compensation to the extent that your loss or damage is also caused or contributed to by you or anyone else.

13 SECURITY

13.1 If you are signing and agreeing to these Terms as a director or trustee of a private corporation or a trust (**Entity**) you acknowledge that you:

- (a) are signing and agreeing on behalf of each and every director or trustee of the Entity and you are binding the Entity and every director of the Entity to these Terms and, in doing so, warrant to us that you are acting as the authorised agent with actual authority on behalf of the Entity to do so; and
- (b) guarantee to us the performance by the Entity of these Terms and indemnify us in the failure by the Entity to perform any of these Terms, including in particular as to payment of any fees, charges and expenses due and owing to us.

13.2 You acknowledge and hereby grant us a security interest of all legal and beneficial interest of any and all personal property owned by you in accordance with the *Personal Property Securities Act 2009* (Cth) (**PPSA**) to secure the payment under this Cost Agreement.

13.3 You acknowledge that we may do any and all things or acts necessary to perfect the security interest given under Clause 13, and consent to us registering our security interest in accordance with the PPSA and to sign any document reasonably required to register the security interest under the PPSA.

13.4 You agree to grant us a charge over any and all real property owned by you legally or beneficially to secure us for payment under this Cost Agreement, and in the event this Costs Agreement is

terminated and you have not paid any Bill issued to you in accordance with this Costs Agreement then we may register any instrument necessary to record our charge over such real property the subject of which this charge is given.

- 13.5 By signing this Costs Agreement, you who signs this Costs Agreement hereby irrevocably appoint us as your duly authorised attorney to sign any and all documentation to give effect to the security interest and charge granted by you in Clauses 13.2 and 13.3 above respectively.
- 13.6 You acknowledge that the security given under this clause is reasonable in accordance with section 320(a) of the *Legal Profession Act 2007* (Qld).
- 13.7 We may also require you or any entity to provide a personal guarantee or other security for our fees, charges and expenses including but not limited to a legal or equitable mortgage, legal or equitable charge, lien, consent or caveat over any property in which you have a legal or equitable interest. The cost of providing such security will be at your expense. We will not require such security unless you become indebted to us for fees, charges and expenses exceeding \$3,000.

14 GUARANTEE AND INDEMNITY

- 14.1 You indemnify us and hold us harmless, from any cost, expense or liability incurred by us, whether directly or indirectly arising as a consequence of your failure to strictly observe and perform the terms and conditions contained in this Costs Agreement.
- 14.2 It is agreed that each Third Party Payer to this Costs Agreement are party to this Costs Agreement in accordance with section 322(1)(d) of the *Legal Profession Act 2007* (Qld), with consideration being given by their acceptance to guarantee your obligations under this Costs Agreement including to pay the costs under this Costs Agreement and indemnify us in this regard.
- 14.3 Each Third Party Payer identified in this Costs Agreement acknowledges that by signing this Costs Agreement they become bound to the Costs Agreement as if they are the Client, and acknowledge that they have received a copy of this Costs Agreement.

- 14.4 Any reference to you, includes reference to any Third Party Payer insofar as any obligation in this Costs Agreement relates to payment of our fees and accounts.

- 14.5 We may insist that any Third Party Payer pay a bill by issuing that bill to any Third Party Payer with payment due seven (7) days from the date we issue that bill.

- 14.6 Each individual who signs this Costs Agreement, to the extent they are not signing it in their personal capacity but are signing it as either a principal, director, agent, representative or employee of the Client (e.g. a company or trust) hereby irrevocably jointly and severally guarantees and indemnifies us in their personal capacities as a deemed Third Party Payer in addition to any other stated Third Party Payers.

15 INTELLECTUAL PROPERTY

- 15.1 You acknowledge that we retain all intellectual property rights in all correspondence with you, such as letters, emails, documents, advices, opinions, agreements and any material prepared for or on your behalf.

16 QUERIES OR COMPLAINTS

- 16.1 If you have any queries or complaints about the conduct of the Work or your legal costs, please discuss them with Nick Stone who will seek to resolve your concerns and answer your questions about the Work and our professional fees, charges and expenses.

17 SERVICE OF NOTICES

- 17.1 We may give a Notice to you by:
- (a) delivering it to you personally;
 - (b) leaving it at or by sending it by courier or post to your address last notified to us;
 - (c) sending it by facsimile to your facsimile number last notified to us; or
 - (d) email to your email address last notified to us as being your contact email.
- 17.2 All Notices sent by us will be via email (unless determined otherwise by us). If you change email addresses, you are responsible for notifying us with

your new email address. Such notification must include a direction that all future Notices must be sent to the new email address. Receipt of a Notice from you from a new email address without a direction that all future Notices be sent is not a valid nomination of a new email address.

17.3 It is your responsibility to check your email accounts regularly so that we can communicate with you. We are not liable or responsible for any adverse action taken against you in circumstances where you have either not checked your email account or have not updated us with your new email address details.

17.4 Notice by:

- (a) hand delivery is deemed to be given at the time of delivery;
- (b) leaving it at an address or sending it by courier is deemed to be given at the time of delivery;
- (c) post is deemed to be given on the second Business Day after the document is put in the post, in a stamped envelope or other covering, addressed to you;
- (d) facsimile is deemed to be given when our facsimile machine indicates a successful transmission to the facsimile number unless you contact us within the hour to advise that a full copy of the notice has not been received; and
- (e) email is deemed to be given at the time the email is sent.

17.5 For the purposes of this section, the term **Notice** includes any notice, demand, consent, approval, court proceedings, document, correspondence or other communication and **Business Day** means a weekday when trading banks are ordinarily open in the place where the notice is deemed to be received.

17.6 Where we are acting for more than one of you then delivery of a notice to one of you is deemed delivery to all of you.

18 LIMITATION OF LIABILITY SCHEME

18.1 Our practitioners participate in the Limitation of Liability Scheme and our practitioner's liability is therefore limited for any civil liability arising, whether in tort, contract or otherwise, directly or

vicariously from anything done or omitted by our practitioners acting in the performance of their occupation. You may request, and it is our responsibility to provide, a copy of the scheme.

19 MISCELLANEOUS

19.1 The laws of Queensland will apply to our engagement pursuant to this Costs Agreement.

19.2 Within this Costs Agreement and all annexures and schedules, references to **Stone Group Lawyers** and **Stone Group Lawyers Pty Ltd** means Stone Group Lawyers Pty Ltd (ACN 161 443 812) as trustee for the Stone Trading Trust (ABN 34 573 048 566).

19.3 Stone Group Lawyers is an incorporated legal practice.

SCHEDULE E
CLIENT ACCEPTANCE FORM



I, Cory Shepherd, of 104/158 Scarborough Street, Southport, QLD 4215, hereby agree:

1. I have received, read and understood the Costs Agreement, Disclosure Statement, Schedule of Fees, Charges and Expenses and Standard Terms of Service provided to me by Stone Group Lawyers and accept the terms and conditions contained within those documents;
2. I hereby authorise and direct Stone Group Lawyers to act on my behalf in this matter, and understand that all acts carried out by Stone Group Lawyers shall have the same effect as acts of my own;
3. I hereby instruct you to carry out the work described in the Costs Agreement letter dated 26 November 2024;
4. I acknowledge the estimate of costs and disbursements set out on page 3 of the Costs Agreement letter dated 26 November 2024;
5. I acknowledge that the estimated costs is not a fixed quote and may change as my case progresses or my instructions change;
6. I agree that during my matter you may retain any documents relating to my matter in electronic form only;
7. I acknowledge that on completion of the Work you may store my file and documents relating to my matter in electronic form only and may destroy all hardcopy files in your possession (except for those documents deposited in safe custody). I acknowledge that you may retain my electronic file for no more than seven (7) years after the date of the final bill rendered by you in this matter;
8. I agree to receive correspondence from Stone Group Lawyers electronically, using the contact details that I have provided or in any other manner in accordance with the *Electronic Transactions (Queensland) Act 2001*;
9. I give you authority to transfer from your Trust Account any monies that have been invoiced for Professional Fees, notwithstanding my right at a later date to have any invoices assessed by an independent cost assessor appointed by the Queensland Law Society;
10. I authorise you to apply withdraw or pay any moneys held by you in your Trust Account to third parties on my behalf in the furtherance of my matter; and
11. I acknowledge that in the event the Client is a Company, I acknowledge that by signing below, I become a Third Party Payer in accordance with section 322 of the *Legal Profession Act 2007* and I am now a party to the Costs Agreement and hereby guarantee the obligations of the Client to pay you any and all fees that become due and owing should I be called upon to make such payment and indemnify Stone Group Lawyers for any loss or damage as a result of any breach of the Costs Agreement.

Executed by

.....
Mr Cory Shepherd

.....27.10.....2024
Date of Acceptance



STONE GROUP
LAWYERS

SCHEDULE F

THIRD PARTY PAYMENT LIABILITY

I, Rosemary Shepherd of PO 810, Moree 2400 NSW, hereby agree:

1. I hereby assume liability for all legal costs incurred by Corey Lea Shepherd in this matter and indemnify Stone Group Lawyers for any loss or damage as a result of any breach of the Costs Agreement by Corey Lea Shepherd;
2. I acknowledge the estimate of costs and disbursements set out on page 3 of the Costs Agreement letter dated 26 November 2024;
3. I acknowledge that the estimated costs are not a fixed quote and may change as this matter progresses or Corey Lea Shepherd's instructions change;
4. I have received, read and understood the Costs Agreement, Disclosure Statement, Schedule of Fees, Charges and Expenses, and Standard Terms of Business provided to Corey Lea Shepherd by Stone Group Lawyers and accept the terms and conditions contained within those documents and acknowledge that I am a Third-Party Payer as described in the Costs Agreement;
5. I consent to receiving correspondence from Stone Group Lawyers electronically on behalf of Corey Lea Shepherd, using the contact details that I have provided;
6. I give you authority to transfer from your Trust Account any moneys that have been invoiced for Professional Fees, notwithstanding my right at a later date to have any invoices assessed by an independent cost assessor appointed by the Queensland Law Society; and
7. I authorise you to apply withdraw or pay any moneys held by you in your Trust Account to third parties on my behalf in the furtherance of the matter.

.....
Signature of Rosemary Shepherd

.....2024
Date of Acceptance

Cyber Alert

Funds Transfer Critical Information

People across Australia **have lost money** when hackers have impersonated a law practice or another party involved in a legal matter by altering electronic communications including email, fax, social media, text, instant messaging, applications, file sharing and documents including PDF or Word documents. The following steps are critical to reduce this risk and if you are involved in a transfer of funds these are our expectations of you in helping to reduce the risk of such loss.

To Stone Group Lawyers. In this matter, where payment details are contained in an electronic communication or document, I acknowledge I:

X MUST NOT

Transfer any funds (send, deposit, pay or transfer) of more than \$10,000 Australian dollars or its equivalent in any other currency **without first** telephoning the apparent sender to verbally confirm the account number, details and amounts by reading out and reading back the account and BSB numbers (or other specific payment details where applicable, e.g., if not a bank account) and confirming any instructions; and

✓ MUST

Give the same warnings to anyone else known to be connected to the matter and anticipated to be involved in transferring or receiving any funds (including but not limited to, agents, brokers, family members, accountants).

I must also:

- when calling to check payment details above, **ensure that I do not make contact using a phone number for the apparent sender listed in any communication or document that asks for money or sets out account numbers or details without first** checking the phone number from a source that is different to that communication, for example a separate paper communication or checking the person's website or white or yellow pages telephone listing;
- contact the sender to check legitimacy **before** I open attachments, or click on hyperlinks or download buttons in unexpected emails; and
- contact you immediately if in any doubt about emails or any other electronic communications that appear to have come from you.

PLEASE NOTE: Stone Group Lawyers will not transfer money out of our practice until we are able to verify any bank account by a voice call to confirm those details (by reading out and reading back the account and BSB numbers or other specific payment details where applicable, e.g., if not a bank account). You must make sure you can be contacted if you need any funds transferred by a specific time, otherwise your objectives may not be met.